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Blame game erupts in San Jose baby's fentanyl death: Social workers say lawyers blocked effort to remove infant from unsafe home

Head of child protective agency had said social worker and supervisor made fateful decision

Alex Lemus, a union representative for Santa Clara County social workers, on Tuesday, called the account of the child welfare agency director who blamed a social worker and supervisor for decisions that led to the fentanyl death of 3-month-old Phoenix Castro. "This is not true," she said, explaining that county lawyers opposed attempts to remove the child. (Dan Rosenfield/Bay Area News Group)

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SAN JOSE – In an extraordinary rebuttal, a union representative for Santa Clara County social workers stepped forward Tuesday, directly refuting the account of the child welfare agency director who blamed a social worker and supervisor for decisions that kept a baby girl with her troubled father before the died of a fentanyl overdose.

"I have to correct the record publicly that this is not true," said Alex Lemuel, a union representative from SEIU.

Instead, she said, the County Counsel's office, where lawyers have had increasing influence on decisions about removing vulnerable children from unsafe homes, opposed the social worker's and supervisor's recommendations that the child be placed with her parents.

"They were told by county counsel there's not legally enough to remove" the baby from her parents, Lemuel said.

That assertion was bolstered by emails obtained Tuesday by this news organization. One from a social worker close to the case sent to Damian Wright, director of the Santa Clara County Department of Family and Children's Services, said that social workers had been "told every turn that there is not enough evidence" to remove Phoenix Castro from her San Jose home in the months before the girls May 13 death.

Lemuel said she spoke with a second supervisor on Tuesday, who named a second attorney in the County Counsel's office who also consulted on the baby's case.

Baby Phoenix Castro was only 3 months old when she died of fentanyl and methamphetamine poisoning on May 13. (Courtesy of Edward Bentley)

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Lemuel's defense of the social workers came after a Bay Area News Group investigation published Sunday exposed numerous warning signs that preceded the decision to send baby Phoenix home, and the tensions between the department's goal of keeping families together and its bedrock duty to keep children safe. In recent years, the county turned its focus toward keeping families together with safety plans and services after decades of disproportionately separating families of color.

In an interview last week, Wright told this news organization that "there is no indication of county counsel overriding any decision" in Phoenix's case. His office later added in an email before the publication of the story Sunday that the County Counsel "was not consulted at any time" about the decision to send the baby home.

On Tuesday, when confronted with Lemuel's claim, he issued a statement that said his office "will be exploring this and all information that comes to light, but will need additional comment about the specifics of the case until our internal and external reviews are complete."

Since the Bay Area News Group began investigating this case, the county has repeatedly told this news organization it is "committed to full transparency."

Lemuel said the social workers and supervisors involved in the case have been admonished not to talk to the media by county officials, and were reluctant to speak on the record to this news organization. That's why Lemuel, a union representative, said she came forward on behalf after the county proved responsibility on the social workers.

The controversy goes to the heart of a report by the California Department of Social Services, which found that Santa Clara County social workers' requests to remove children from unsafe homes were consistently rejected by county lawyers. Last month, the state agency issued a damning report, prepared in multiple cases of children who had been removed from unsafe homes by law enforcement officials only for the Department of Family and Children's Services to have "immediately placed the children back in the care of the unsafe parent."

The Bay Area News Group investigation revealed that Phoenix's parents, David Castro, 38, and Emily De La Cerda, 39, both tested positive for opiates, methamphetamine and cocaine in drug tests they underwent as part of their effort to win back custody of their two older children.

Read: 5 signs that a child may be overdosing on fentanyl

Their baby was born suffering from neonatal opioid withdrawal symptoms at Kaiser San Jose Medical Center on Feb. 12. The day after Phoenix's birth, a social worker filled out a safety assessment that found the baby was at "very high risk" to go home with her parents, and a social worker assigned to the couple's older children warned colleagues in an email that the parents hadn't "addressed any of the issues that brought them into the system" and "worry that Phoenix may be subject to that same level of neglect and possibly result in her death."

On May 13, baby Phoenix was found dead in the family apartment off Blossom Hill Road in South San Jose. It remains unclear how the baby ingested the drugs, but police found fentanyl and a broken glass pipe for the drug in the baby's bottle.

Castro, the father, is now in jail facing a felony child endangerment charge and De La Cerda, the mother, died of a fentanyl overdose just four months after her baby.

On Tuesday, Lemuel said she felt compelled to set the record straight on the attempts by social workers to keep Phoenix safe, especially in light of Wright's comments singling out the social worker and supervisor. She said she spoke directly with the social worker involved in the baby's case, who made it clear the county counsel did not support their position to remove the baby.

"The County's/Department's public statements regarding Phoenix is unacceptable," Lemuel said in an email Monday to the head of Santa Clara County Social Services Director Lisa Little. "The truth cannot be hidden forever behind emails that cannot be forwarded, documents that cannot be printed, or statements that are misleading."

Regardless who is to blame, relatives, neighbors and others in baby Phoenix's circle are struggling to understand how she was left in the couple's care.

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De La Cerda also had two children, now 8 and 5, before her relationship with Castro. One of those kid's fathers is Elias Romero who has custody of De La Cerda's second child.

"If you have two kids that are taken away then you shouldn't be granted a third one, because both parents were deemed unfit," Romero said. "And you let this guy care for the third kid knowing there's two kids that are not in his custody. This just doesn't make sense."

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